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事由	擬辦	批示
	此係美方答覆台僑恢復國籍問題之文件 前已由美使館及代表團送部本件擬存 廷鑄 十二、八	查[illegible]閱及業經[illegible]謹[illegible]

附件

中華民國駐美利堅合眾國大使館代電

發字第四一七四號

中華民國三十五年十二月十二日發

外交部鈞鑒第五號電計蒙察及茲謹附奉美外交部十一月二十一日備忘錄抄件一份敬祈鑒核駐美大使館

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收文 00494 號

外交部亞東司 收文 東36字第50號

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AIDE-MÉMOIRE

Reference is made to a recent oral inquiry by a member of the staff of the Chinese Embassy concerning the status of Taiwanese in Japan, and the related question of their exemption, as United Nations nationals, from the jurisdiction of Japanese police and, in criminal cases, from the jurisdiction of Japanese courts. In this connection, it is understood that the Chinese Government now considers all Taiwanese to be Chinese, excepting only those who have executed before the proper authorities a declaration of unwillingness to acquire Chinese nationality.

It is the view of the Department that the removal of United Nations nationals from the jurisdiction of

Japanese

Japanese police and courts was a measure designed primarily to facilitate the work of the occupation authorities and to safeguerd occupation personnel. Americans and most other nationals of members of the United Nations who are not engaged in occupational duties have in general been repatriated from Japan, and there do not exist there the facilities which would be necessary for properly maintaining order and administering justice were the privilege of exemption from Japanese jurisdiction to be extended to a lerge community of persons for whom it was not intended. In particular, it is considered that exemption from Japanese jurisdiction was not intended to be accorded the estimated 20,000 persons in Japan claiming to be Taiwenese; these persons throughout the war were enemy nationals and according to Japanese law still retain Japanese nationality, excepting only those who have individually divested themselves thereof in accordance with

with established procedure.

The rights of the Taiwanese in Japan to this special treatment therefore would appear to rest upon the technical grounds of the extension to them under Chinese law of the status of Chinese nationals. It should, however, be pointed out that from the legal standpoint the transfer of Taiwan's sovereignty remains to be formalized; assumably a treaty of cession will in due course be negotiated which will effect such transfer and which may contain provisions in regard to appropriate change in the national status of Taiwan's residents. It is, of course, not now possible to state with certainty that the terms of such a treaty will effect a change in the national status of persons of Taiwanese derivation who have abandoned their Taiwanese residence and settled in other lands. Finally, it should be pointed out that a great proportion of the alleged Taiwanese in Japan are without Chinese certificates of

identity

identity and nationality.

In this connection, it would be most helpful if the Chinese authorities would undertake to screen all Taiwanese in Japan, repatriating those who are unable to establish that they have a legitimate means of livelihood and issuing suitable certificates of identity to the remainder. Should the number of individuals in Japan now claiming a special status as Taiwanese be reduced through such a process to a relatively small body of properly investigated and documented persons, it might be possible to extend to them the special treatment which now is claimed for them. In the meantime, this Government would be disposed to hold that the Supreme Commander for the Allied Powers in Japan, on the basis of the aforementioned considerstions and on the grounds of military necessity, would be justified in authorizing the Japanese police and courts to continue to exercise jurisdiction over Taiwanese in Japan.

Department of State,

Washington, November 21 1946